

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302029	VAZQUEZ VS FORD MOTOR COMPANY	MOTION FOR ATTORNEYS FEES BY FERNANDA VAZQUEZ

Tentative Ruling: The matter of reasonableness of a party's attorney fees is within the discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information such as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Plaintiff's motion relies on the Declaration of Dhara Chandy to establish the attorneys' fees, costs, and expenses along with hourly rates and attorney experience.

Plaintiff's rates ranged from \$195 to \$650 per hour. Managing Partner Tionna Carvalho billed \$570 per hour in 2023, \$595 per hour in 2024, and \$650 per hour in 2025. Senior Counsel George Hill billed \$550 per hour in 2024 and \$585 per hour in 2025. Senior Counsel Tyson Smith billed \$475 per hour in 2023, \$525 per hour in 2024, and both \$525 and \$565 per hour in 2025. Other attorneys and support staff billed at rates ranging from \$195 to \$615 per hour.

First, the hourly rates are not reasonable for Riverside County. Plaintiff makes no showing that she could not obtain local counsel, and therefore, are not entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) The rates are reduced as follows:

Tionna Carvalho (Partner) to \$550; George Hill and Tyson Smith (Senior Counsel) to \$500 each; all other attorney associates (Chandy, Dias, Law, Medina, Pillai, Sanaia, Tirmizi, Virasingh, Weiser): \$350/hour

All other timekeepers (Law clerks and clerks): \$150/hour

Second, Plaintiff used 24 timekeepers, consisting of work on one lemon law case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) The following individuals' times are removed as superfluous: (1) Karla Hernandez for 0.5 hours, (2) Tara Mejia for 0.8 hours, (3) Silvia Moreno for 0.3 hours, and (4) Nino Sanaia for 0.7 hours.

Defendant attacks specific billing entries as follows:

8.2 Hours Pleading-Related Work:

Defendant argues that these fees were unreasonable because the work involved meet and confer, drafting a First Amended Complaint (FAC) that was allegedly identical to the original, and preparing an opposition to a demurrer, relating to the fraud and negligent repair claims only. These are compensable tasks but the hours billed are excessive. The court strikes 4 hours from these tasks (2 hours from Jacob Lister and 2 hours from Daniel Law).

15.2 Hours for MSA Opposition:

Defendant argues that 15.2 hours is excessive for opposing a motion for summary adjudication (MSA) challenging only one fraud claim. These hours include drafting (attorney Pillai), revision (attorney Tirmizi), and hearing attendance (attorney Virasingh). These times are compensable but excessive. The court strikes 2 hours from Pillai, 2 hours from Rabiya Tirmizi, and 1.2 hours from Ann Virasingh.

6.5 Hours for Opposing Discovery Motion:

Defendant argues that the time spent in opposing a motion to compel further interrogatory responses is not justified because the court granted the motion. This time is, however, compensable regardless of the outcome.

4.5 Hours for Second PMK Deposition Preparation:

Defendant asserts that billing 4.5 hours to prepare for and attend a second session of its PMK deposition is unreasonable since "no deposition was set on or shortly after that date." Plaintiff counters that Defendant is the one that offered the second deposition and so Plaintiff served a third amended notice of deposition. 4.5 hours for preparing and serving an amended deposition notice is unreasonable. There is no attendance time. The court strikes 4 hours (attorney Hill) from this time, allowing only 0.5 hours for this task.

5.5 Hours for Fee Motion & \$4,000 in Anticipated Fees:

Defendant argues that 5.5 hours billed for this fee motion using boilerplate templates and the \$4,000 requested for "anticipated" future work are excessive. Defendant's argument has merit. The court strikes 3 hours for the fee motion and allows

only 2 hours for this task. Also, the \$4,000 future fee is unsubstantiated. Plaintiff did not provide a breakdown of estimated hours to support the anticipated work.

Block-Billed Time:

Defendant argues that certain entries are “block-billed.” There is a 3.5-hour entry on 10/31/24 (Stoliker) that bundles an ex parte application, a stipulation, emails, and a deposition notice. “Block billing presents a particular problem for a court seeking to allocate between reimbursable and unreimbursable fees, and trial courts are granted discretion ‘to penalize [block billing] when the practice prevents them from discerning which tasks are compensable and which are not.’” (*In re Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.) The trial court may exercise its discretion by assigning a reasonable percentage or casting them aside. (*Id.*) Block billing undermines the credibility of the attorney. (*Id.*) Here, the entry is not itemized, the court reduces 1 hour (attorney Stoliker) from this entry.

Clerical Tasks:

Defendant argues that 4.1 hours of the requested fees are clerical in nature and “billed by some of the firm’s highest-rate attorneys.” Defendant, however, failed to explain what these individual billing entries are. No adjustment as to the clerical tasks claim.

Accordingly, the adjusted lodestar is illustrated below

Name	Hours (original)	Rate (original)	Total (original)	Hours (amended)	Rate (amended)	Total (amended)
Carvalho, Tionna (2023)	1.0	\$570	\$570	1.0	\$550	\$550
Carvalho (2024)	4.0	\$595	\$2,380	4.0	\$550	\$2,200
Carvalho, Tionna (2025)	4.7	\$650	\$3,055	4.7	\$550	\$2,585
Chandy, Dhara (2026)	1.0	\$435	\$435	1.0	\$350	\$350
Dias, Aylana (2024)	5.2	\$325	\$1,690	5.2	\$350	\$1,820
Fernandez, Camilo (2024)	1.6	\$325	\$520	1.6	\$150	\$240
Fernandez, Camilo (2025)	1.2	\$345	\$414	1.2	\$150	\$180
Hernandez, Karla (2026)	0.5	\$195	\$97.50	0	\$150	\$0
Hill, George (2024)	0.8	\$550	\$440	0.8	\$500	\$400
Hill, George (2025)	9.2	\$585	\$5,382	5.2	\$500	\$2,600
Khanna, Aarushi (2026)	4.5	\$360	\$1,620	1.5	\$150	\$225

Law, Daniel	4.2	\$475	\$1,995	2.2	\$350	\$770
Lister, Jacob	4.5	\$495	\$2,227.5	2.5	\$350	\$875
Lunn, Kathryn	2.4	\$345	\$828	2.4	\$150	\$360
McCallister, Ian	1.6	\$595	\$952	1.6	\$350	\$560
Mcgurk, Lina	2.5	\$600	\$1,500	2.5	\$350	\$875
Medina, Jonathan	8.5	\$525	\$4,462.5	8.5	\$350	\$2,975
Mejia, Tara (2023)	0.6	\$395	\$237	0	\$350	\$0
Mejia, Tara (2025)	0.2	\$425	\$85	0	\$350	\$0
Moreno, Silvia (2026)	0.3	\$195	\$58.50	0	\$150	\$0
Pillai, Vineeth (2025)	10.8	\$375	\$4,050	8.8	\$350	\$3,080
Sanaia, Nino (2024)	22.5	\$435	\$9,787.5	22.5	\$350	\$7,875
Sanaia, Nino (2025)	0.7	\$475	\$332.50	0	\$350	\$0
Smith, Tyson (2023)	2.9	\$475	\$1,377.5	2.9	\$500	\$1,450
Smith, Tyson (2024)	13.9	\$525	\$7,297.5	13.9	\$500	\$6,950
Smith, Tyson (2025)	1	\$565	\$565	1	\$500	\$500
Stoliker, Rosy (2024)	4.8	\$435	\$2,088	3.8	\$350	\$1,330
Theophil, Hannah	2.7	\$395	\$1,066.5	2.7	\$150	\$405
Tirmizi, Rabiya (2024)	3.3	\$395	\$1,303.5	3.3	\$350	\$1,155
Tirmizi, Rabiya (2025)	10.9	\$435	\$4,741.5	8.9	\$350	\$3,115
Vaziri, Sanam (2023)	1.7	\$610	\$1,037	1.7	\$350	\$595
Virasingh, Ann	1.9	\$615	\$1,168.5	0.7	\$350	\$245
Weiser, Anna (2023-24)	5.8	\$525/\$550	\$3,165	5.8	\$350	\$2,030
TOTALS	141.4		\$66,929	121.9		\$46,295

Costs and Expenses:

Plaintiff requests \$15,588.03 in costs. Defendant did not object to any particular cost entries but argues that Plaintiff did not file a memorandum of costs. Costs are recoverable if they were reasonably incurred in prosecuting the action. (Civ. Code, §

1794(d).) The parties' settlement agreement provides that attorneys' fees and costs shall be determined by motion practice. (Chandy Decl., Ex. 6, ¶ 2.)

Multiplier:

This case involved multiple motions including a demurrer, motions to compel and motion for summary adjudication filed by Defendant. The court shall award a multiplier of 1.1 in recognition of additional involvement required for this case.

Plaintiff's Request for Judicial Notice DENIED.

Plaintiff's Evidentiary Objections the court DECLINES to RULE.

Motion for Attorneys' Fees GRANTED in PART.

Award of Fees \$46,295 + \$4,629.50 (1.1 multiplier) + \$15,588.03 costs for total of \$66,512.53.

OSC re Dismissal continued to September 14, 2026

2.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT OF ALYSSA WINSTEAD, AN INDIVIDUAL BY YARANA, INC.

Tentative Ruling: Either party may move for summary judgment "if it is contended that the action has no merit or that there is no defense to the action or proceeding." (CCP §437c(a).) Summary judgment is granted when a moving party establishes the right to entry of judgment on a particular cause of action as a matter of law. (CCP 437c(c).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (CCP §437c(c).) "In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgement shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (CCP §437c(c).) The court must view such evidence and inferences in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 844.)

The claims asserted against Yarana are negligence/premises and negligent hiring or supervision. A negligence claim requires a duty, breach of duty, causation, and damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Premises liability and negligence claims have the same elements. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) A premises claim is based on the possession of the premises and the property owner/manager's right to control and manage the property. (*Id.*) "But the duty arising from possession and control of property is adherence to the same standard of